



Guidelines

Requests for Information from Police and Law Enforcement

If you would like to discuss anything in this privacy notice, please contact:

Data Protection Officer: **Data Protection Education Ltd.**

Telephone: 0800 0862018

Email: dpo@dataprotection.education

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If you are reading a printed version of this document you should check the Information Management pages on [the school network] to ensure that you have the most up-to-date version.

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Requests for Information from Police and Law Enforcement

Requests By The Police And Other Law Enforcement Agencies For Disclosure Of Personal Information

Requests will most commonly be received by schools from the Police. However, other Government Agencies may also request data for law enforcement purposes, such as the Department for Work and Pensions, HM Revenue and Customs and the UK Visas and Immigration Service.

Personal data held by schools must be managed in accordance with the General Data Protection Regulation (GDPR) and the Data Protection Act 2018 (DPA). Schools will be aware that when personal data is collected and disclosed steps must be taken to ensure that this processing of data is "fair and lawful" in order to comply with the first principle of the GDPR, and that the purpose of any processing is covered in the School's privacy notices.

The School's Data Protection Policy is vitally important in this respect. It should provide guidance to all data subjects on the purposes for which personal data is collected, disclosed and transferred outside the School. It should be kept updated as necessary to include any and all new purposes and it should of course provide for the purpose of sharing information and data with law enforcement agencies for the purposes of law enforcement and in order to comply with statutory obligations and duties.

When required by law personal data may be disclosed without contravening the DPA. For example, the Social Security Fraud Act 2001 requires education institutions to provide any information to authorised officers of the Department for Work and Pensions or local authorities which is required for the investigation of fraud against the state benefit system. Refusal to provide the information can lead to prosecution.

Section 26 of the Data Protection Act 2018 provides an exemption from compliance with the provisions of the DPA if the information requested is required for the purpose of safeguarding national security, or defence purposes.

Schedule 2 Part 1 section 2 (1) (a) (b) and (c) provides an exemption for disclosure of personal information for the prevention or detection of crime, the apprehension or prosecution of offenders, or the assessment or collection of a tax or duty or an imposition of a similar nature if not releasing the information would prejudice those stated matters. This section is commonly used by the Police or other investigating authorities for legitimate policing or enforcement purposes in order to request personal information, relating to legitimate policing enquiries and investigations. It is a matter for the school to determine whether or not to disclose the

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information requested, as there appears to be no element of compulsion to do so under the DPA 2018.

What Schools Need To Consider Before Releasing Data To Law Enforcement Authorities Or Agencies

Schools have an obligation to co-operate with the police and other agencies in the prevention and detection of crime for the maintenance of a safe environment for the School and the wider community. However, schools must bear in mind the obligations placed upon them as a data controller and processor under the DPA to do this *fairly and lawfully*.

A balance needs to be struck when requests to release data held by the school are made. If the school refuses to release the information for a genuine and properly authorised investigation, law enforcement agencies may obtain a court order requiring the school to provide it to them and in some circumstances the school may also face penalties under legislation which requires disclosure. Conversely if the school share or process data unlawfully, fines can be severe (up to a £500k fine at present). It is therefore important to obtain the relevant information that allows the school to process the data lawfully and to document this.

What To Consider When Responding To Requests For Information

Refer the request to the school's Data Protection Officer

It is important that the school responds to requests in a consistent and coordinated manner, using the most up to date information available. To facilitate this, staff who receive a request for personal data from a law enforcement agency must forward the request as soon as possible to the DPO lead who can coordinate the School's response.

Consider the request objectively

Before the school releases data, care needs to be taken to ensure that the information is being provided for a genuine and properly authorised investigation. It is up to the school to decide what information to release in response to a request. Therefore, the school must be clear on why they are being asked to disclose personal information, what information they are being asked to disclose and must document the decision making process in respect of this. Except in emergency situations, the school should only disclose personal data in response to an adequate

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and properly authorised written request which is clear. If a request is vague then the school should request clarification of the request so as to ensure that only the information that is necessary and required is disclosed. Schools should only disclose data necessary to comply with the request.

Document compliance and transparency

Schools should ensure that all requests, responses to requests and the reasons for decisions are documented. Always ask the recipient to confirm receipt of the information from you. This is needed for transparency and to show reasonable cause in disclosing the information. Copies of any form or letter used to request personal data, other correspondence with the law enforcement agency and a copy of any data released, should be retained by the School.

Other considerations

If the request concerns any of the legal obligations or duties of the school, refer the matter to the school's legal advisors.

Police Force Requests - Things To Consider

These requests are likely to be the most common law enforcement requests made of a school:

Reasons for the request

Police forces have standard forms that they use when requesting personal information. These forms will usually refer to S26 of the DPA and Schedule 1 Part 2 Clause 1 of the DPA as the reason for requesting personal data. Namely information for;

- An investigation concerning national security, or
- The prevention or detection of crime, or
- The apprehension or prosecution of offenders, and
- That the investigation would be prejudiced by a failure to disclose the information.

If the request for disclosure is made for these reasons, they will provide the school with a legal basis for supplying personal information without consent. If the request for disclosure is not for these reasons, then the school will need to consider what, if any, legal basis exists for the release of the information before personal information is disclosed and whether consent needs to be obtained.

Does the form adequately identify the subject of the request?

The form should also provide sufficient information in order for the school to identify the person to whom the request for information relates. If it does not, then the school should seek clarification to ensure the correct data subject has been identified. The full name, address and

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date of birth of the subject should be provided. Any clarification required and sought should be documented.

The information requested

The form should be clear about what information is being requested. The school should only disclose or release the personal information requested to comply with the request. The school must not release all information held or information that is not necessary to comply with the request. If the form is not clear, then clarification should be sought and documented for transparency.

Has the form been signed?

Police forms are usually signed by the supervising officer with his or her rank stated and contact details provided. It is important that these details are known so that the school can contact the supervising officer if necessary in order to verify the request made or seek clarification if required.

Other Law Enforcement Agencies

Other law enforcement Agencies may not use forms. However, any request should:

- Be in writing on letter headed paper with contact details that can be verified by the school.
- Describe the nature of the investigation and cite any relevant statutory authority relied upon to obtain the information.
- Clearly state the information required to be disclosed.
- Certify that the information is necessary for the investigation.
- Adequately identify the person to whom the request relates by providing a name, address, date of birth, national insurance number or other such identifying information.

If a properly completed form or letter is received and the school are satisfied, following verification, that the request is genuine, the information requested should be disclosed in order to comply with the request made.

If there is a reason to doubt that the request is genuine then the school can and should refuse the request and should consult with their legal advisors.

Emergency Situations

An emergency situation is one where there is a reason to believe that there is a danger of death or injury to a member of the school or any other person. A severe medical emergency or a potential suicide are examples where disclosure would be in the vital interest of the data

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subject and provision is made in Schedule 8 of the DPA to allow for the disclosure of personal information to the police or emergency services in such circumstances where they may urgently require personal data but may not have time to complete a formal written request. In these circumstances, any staff member who has access to the data can legally disclose the information.

The following safeguards should be considered in emergency situations;

- If the request is not face-to-face but received by telephone, ask the caller to provide a switchboard number, and immediately call them back through the organisation's switchboard. This provides a quick basic (though not foolproof) way of checking that the call is genuine. If time allows you could also request to speak to the line manager of the person who made the request in order to check that the call is genuine.
- If the request is made orally in person check the identity of the person making the request and their authority to do so. Make a note of their full name, identity, address and credentials. Verify who they are by asking them to provide their organisation's switchboard number, the identity of their line manager and call to verify the credentials of the person making the request and their authority to do so.
- After the emergency situation has been resolved ask the enquirer to follow up their request with a formal written request by email, so that you have this on file. Keep a record of the enquiry and your response.
- Do not be pressured into disclosing data in such a situation if there is any doubt as to the validity of an oral request. Ask the enquirer to submit the request in writing and refer the enquiry to the Data Protection Officer.